

**IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST
REPUBLIC OF SRI LANKA**

In the matter of an Appeal made under
Section 331(1) of the Code of Criminal
Procedure Act No.15 of 1979 read with
Article 138 of the Constitution of the
Democratic Socialist Republic of Sri
Lanka.

**Court of Appeal Case No.
CA/HCC/0335/2025
High Court of Tangalle
Case No. HC/135/2021**

Rathnayake Arachchige Damith
Sankalpa

ACCUSED-APPELLANT

Vs.

The Hon. Attorney General
Attorney General's Department
Colombo-12

COMPLAINANT-RESPONDENT

BEFORE : **P. Kumararatnam, J.
R. P. Hettiarachchi, J.**

COUNSEL : **Sandeepani Wijesooriya for the
Appellant.
Anoop De Silva, DSG for the Respondent.**

ARGUED ON : **09/06/2026**

DECIDED ON : **20/07/2026**

JUDGMENT

P. Kumararatnam, J.

The above-named Accused-Appellant (hereinafter referred to as the Appellant) was indicted by the Attorney General in the High Court of Tangalle on the following charge namely, committing the offence of rape on Vitharana Gamage Dilmi Janithya on or about the 20th June 2019, which is an offence punishable under Section 364(2) of the Penal Code.

After a non-jury trial, the Appellant was convicted as charged and was sentenced to ten years RI and a fine of Rs.5000/-. In default 03 months rigorous imprisonment was imposed. Further, a sum of Rs.350,000/- compensation was ordered with a default term of 6 months simple imprisonment.

Being aggrieved by the aforesaid conviction and the sentence, the Appellant preferred this appeal to this court.

The learned Counsel for the Appellant informed this court that the Appellant has given consent to argue this matter in his absence. Also, at the time of argument the Appellant was connected via the Zoom platform from prison.

The Counsel for the Appellant advanced the following grounds of appeal:

1. The Learned trial Judge has failed to consider the inter se and per se contradictions and inconsistencies in the evidence of the prosecution witnesses, which materially affect the credibility, and reliability of the prosecution case.
2. The Learned trial Judge has erred in law in holding that the evidence of the prosecutrix was sufficient to sustain a conviction, notwithstanding that such evidence fails to satisfy the tests of consistency, probability and belatedness, thereby rendering the conviction unsafe.
3. The Learned trial Judge has failed to consider that the testimony of the prosecutrix is contradicted by the medical evidence adduced before Court, which contradiction creates a reasonable doubt regarding the prosecution case.
4. The Learned trial Judge has failed to appreciate that the prosecution has not proved the date of the alleged incident beyond reasonable doubt, and has thereby erred in law in convicting the Appellant.
5. The Learned trial Judge has failed to properly evaluate and consider the Dock Statement of the Appellant.
6. The Learned trial Judge has misdirected himself in law by applying erroneous legal principles relevant to inquisitorial system.

The victim was 14 years old when she encountered this incident. At that time, she was studying in grade 10. She had first met the Appellant at the school sports meet. Although the Appellant had proposed to her, she did not accept the proposal. On the day of the incident when she was at home after school and ready to go to the bathroom for a wash only wearing the vest and her undergarment, the Appellant had gone there, had forcefully taken her, closed her mouth by hand and put her on a bed in her father's room. After removing his trouser, the Appellant had forcibly had sexual intercourse with the victim after removing her undergarment. After the act, she had pushed

the Appellant and she had run away from the room. The Appellant too, had run away from the house. Although she went to inform this incident to PW2, Rupika, her aunt, she could not do so due to the non-availability of her aunt. Thereafter, she had kept quiet and had informed her aunt on 05.07.2019. The victim had seen the Appellant going with another person thereafter.

PW2 Rupika, her aunt who was living in the neighbouring house, had come to know about the incident only 15 days after the incident. Although she gave evidence, she could not describe the incident divulged to her by the victim properly.

The incident was conveyed to PW3, the mother of the victim by PW2 on 05.07.2019. After that the complaint was lodged with the police.

PW06, the JMO who examined the victim on 08.07.2019, stated that no external injuries were found on the labia or near the vagina of the victim. No recent or old injuries were seen in her vagina. The JMO had not excluded sexual intercourse.

After the closure of the prosecution's case, the defence was called and the Appellant made a dock statement denying the incident. At the time of incident, the Appellant was only 19 years of age.

As the appeal grounds raised by the Appellant are interconnected, all grounds will be considered together hereinafter.

The prosecutrix's position was that she was forcibly raped by the Appellant on the date of the incident. According to her, full intercourse had taken place. Although she had told the Police that the Appellant had kissed and fondled her breasts, when giving evidence she did not mention these facts to the court. She also admitted that the Appellant had come behind her after the school sports meet, but she did not like it. In her evidence, it is revealed that before she lodged her complaint, she had seen the Appellant with another girl going in a bus.

PW2, the aunt of the victim could not clearly give evidence with regard to the rape incident. She only said that the victim had told her that the Appellant had raped her. Even though it was demanded, PW2 had failed to reveal actually what details she had received from the victim.

PW3, the mother of the victim in giving evidence had said that the victim had told her that the Appellant had attempted to commit rape on her. This evidence was recorded at page 137 of the brief.

Analysing the medical evidence is extremely important in this case, as the Learned High Court Judge heavily relied on the medical evidence to convict the Appellant. In the history given to the JMO, the victim had said that the Appellant had pushed the victim to the room, closed her mouth using both hands, touched her breasts, removed her clothes, inserted his penis, and threatened her that he would post it on Facebook.

On the examination, the JMO had not found any injuries on the labia nor near the vagina. No recent or old vaginal tears were noted in her vagina. No signs of expansion or dilatation noted in the vagina. According to the JMO, the penis can be inserted to the vagina without a tear but considering the age of the victim, there is a high percentage or high chance that there would be such an injury in the vagina.

When an accused is facing a serious criminal charge it is essential that every point in favour of the accused, though it may seem trivial, should be placed before the judge. It may well be that all such matters, if so, placed before the judge may create a reasonable doubt, the benefit of which should accrue to the accused.

In this case the Learned High Court judge had not considered the evidence favourable to the Appellant. He had only considered the evidence given by the prosecutrix and arrived at the conclusion that the evidence given by the prosecutrix is convincing and reliable and that, therefore, the prosecution had proved the case beyond reasonable doubt. However, considering the

evidence mentioned above, I conclude it is not safe to rely on the evidence given by the prosecutrix as it is tainted with doubt and ambiguity.

In this case the victim was 14 years old and the Appellant was 19 years old, thus it is evident that he had just attended his adulthood.

In a criminal trial, as continuously stated by the Appellate Court, the burden of proving a case rest entirely on the hands of the prosecution and this responsibility never shifts to the defence unless the defence takes up a plea to a general or special exception of the Penal Code.

In **H. M. Mahinda Herath v. The Attorney General** CA/21/2003 in Appellate Court Judgments (Unreported) 2005 at page 35-39 the court held that:

“Where it was held that in a criminal case burden is always on the prosecution to prove the charge levelled against the accused beyond reasonable doubt. The trial judge must always bear in mind that the accused is presumed to be innocent until the charge against the accused is proved beyond reasonable grounds”.

In the case of **State of Rajasthan v. Raja Ram** (2003) 8 SCC 180 it was held:

“The golden thread which runs through the web of administration of justice in criminal cases is that if two views are possible on the evidence adduced in the case, one pointing to the guilt of the accused and the other to his innocence, the view which is favourable to the accused should be adopted. The paramount consideration of the Court is to ensure that miscarriage of justice is prevented. A miscarriage of justice which may arise from acquittal of the guilty is no less than from the conviction of an innocent.”

The single most important criterion in evaluating the fairness of a trial is the observance of the principle of equality of arms between the defence and the prosecution. Equality of arms, which must be observed throughout the trial, means that both parties are treated in a manner ensuring a procedurally

equal position during the course of a trial. It would be difficult to identify in advance, all of the situations that could constitute violations of the fair trial principle.

Jayant Patel, J. in the case of **Jusabbhai Ayubhai v. State of Gujarat** CR.MA/623/2012 stated that:

“.....It is by now recognized principles that justice to one party should not result into injustice to the other side and it will be for the Court to balance the right of both the sides and to uphold the law.”

In the case of **Zahira Habibullah Sheikh v. State of Gujarat** (2004) 4 SCC 158 it was held that:

“It will not be correct to say that it is only the accused who must be fairly dealt with. That would be turning a Nelson's eye to the needs of the society at large and the victims or their family members and relatives. Each one has an inbuilt right to be dealt with fairly in a criminal trial. Denial of a fair trial is as much injustice to the accused as is to the victim and the society. Fair trial obviously would mean a trial before an impartial Judge, a fair prosecutor and atmosphere of judicial calm. Fair trial means a trial in which bias or prejudice for or against the accused, the witnesses, or the cause which is being tried is eliminated.”

In the case of **Natasha Singh v. CBI** (2013) 5 SCC 741 it was held that:

“Fair trial is the main object of criminal procedure, and it is the duty of the court to ensure that such fairness is not hampered or threatened in any manner. Fair trial entails the interests of the accused, the victim and of the society, and therefore, fair trial includes the grant of fair and proper opportunities to the person concerned, and the same must be ensured as this is a constitutional, as well as a human right. Thus, under no circumstances can a person's right to fair trial be jeopardized. Adducing evidence in support of the defence is a valuable right. Denial of such right would amount to the denial of a fair trial.”

After careful perusal of the evidence presented in the trial, I am of the view that the evidence presented by the prosecution is tainted with serious shortcomings and ambiguities. Therefore, it is not safe to act on such evidence of the prosecution against the Appellant.

The learned Deputy Solicitor General in keeping with the highest traditions of the Attorney General Department, left the matter to be decided by this Court.

Considering both the Prosecution's case as well as the case advanced by the Defence, it is concluded that the grounds of appeal forwarded by the Appellant carry sufficient merit to substantiate awarding the benefit of the doubt to the Appellant.

I, therefore, set aside the conviction and the sentence imposed on the Appellant by the Learned High Court Judge of Tangalle. The Appellant is acquitted from the charge.

The appeal is allowed.

The Registrar is directed to send this judgment to the High Court of Tangalle along with the original case record.

JUDGE OF THE COURT OF APPEAL

R. P. Hettiarachchi, J.

I agree.

JUDGE OF THE COURT OF APPEAL